

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Patrick Giblin,

Plaintiff,

-against-

City of New York, Duty Captain Baker, Detective Bureau Duty Captain Flannigan, Icahn School of Medicine at Mount Sinai, Mount Sinai Health System Inc., The Mount Sinai Medical Center, Inc., The Mount Sinai Hospital, Mount Sinai Faculty Practice Associates, Sandra M. Lowe, M.D., Fatih Ozbay, M.D., Esther McBirney-Goc, Ph.D., and John Does 1-10.

Defendants.

SUMMONS

Index No:

Date Purchased: June 29, 2016

Plaintiff designates New York County as the place of trial.

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorney an answer to the Complaint in this action within twenty (20) days after service of this summons, exclusive of day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and, in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint, together with the costs of this action.

Venue in this action is based upon the County in which the causes of action arose and in which defendants maintain their offices.

Dated: New York, New York
June 29, 2016

LASASSO LAW GROUP PLLC

/S/ Mariel LaSasso

By: _____

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The World Trade Center Health Program
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New York, NY 10029

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Patrick Giblin,

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City of New York, Duty Captain Baker, Detective
Bureau Duty Captain Flannigan, Icahn School of
Medicine at Mount Sinai, Mount Sinai Health System
Inc., The Mount Sinai Medical Center, Inc., The
Mount Sinai Hospital, Mount Sinai Faculty Practice
Associates, Sandra M. Lowe, M.D., Fatih Ozbay,
M.D., Esther McBirney-Goc, Ph.D., and John Does 1-
10.

Defendants.

VERIFIED COMPLAINT

Index No.

Plaintiff PATRICK GIBLIN (“Plaintiff”), by and through his attorneys, LaSasso Law Group PLLC, as and for his verified complaint (the “Complaint”) against defendants City of New York, Duty Captain Baker, Det. Duty Captain Flannigan, Icahn School of Medicine at Mount Sinai, Mount Sinai Health System Inc., The Mount Sinai Medical Center, Inc., The Mount Sinai Hospital, Mount Sinai Faculty Practice Associates, Sandra M. Lowe, M.D., Fatih Ozbay, M.D., Esther McBirney-Goc, Ph.D., and John Does 1-10 (collectively “Defendants”), respectfully alleges as follows upon information and belief:

Nature of the Action

1. On June 30, 2015 an Amber Alert was issued throughout the New York Area falsely informing millions of people that Plaintiff was suicidal, had abducted an unknown three-year old girl from a mental health clinic and the child was in danger of serious bodily harm or death.

2. On the contrary, Plaintiff was not suicidal and the three-year old to whom the

Amber Alert referred was not abducted, but Plaintiff's own daughter who was legally and safely in his custody.

3. Plaintiff suffered and continuous to suffer damages stemming from the grossly irresponsible, negligent, reckless and/or intentional actions, false statements and false Amber Alert lodged against him because of Defendants on June 30, 2015.

4. Plaintiff's damages are ongoing as his reputation is irreparably harmed, his private mental health information has been publicized, and Defendants have failed to correct the falsehoods about Plaintiff they published or caused to be published, as the case may be, to millions of people.

Parties

5. Plaintiff Patrick Giblin is a natural person, and at all times relevant herein resided in the County of Richmond, in the City and State of New York.

6. Defendant City of New York (the "City") is a municipal corporation duly incorporated and existing under the laws of the State of New York.

7. The City of New York has established and maintains the New York Police Department ("NYPD") as a constituent department of the City.

8. At all relevant times, the City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the City was responsible for ensuring that NYPD personnel obey the laws of the United States and New York State.

9. At all times relevant hereto, defendant Duty Captain Baker was a police captain in the NYPD, acting in the capacity of agent, servant and employee of the City, and within the

scope of his employment as such.

10. At all times relevant hereto, defendant Detective Bureau Duty Captain Flannigan was a supervising police detective in the NYPD, acting in the capacity of agent, servant and employee of the City, and within the scope of his employment as such.

11. At all times relevant hereto, defendants JOHN DOES 1-10, said names being fictitious and presently unknown, were police officers, detectives, supervisors, spokespersons, policy making officials, servants, agents, employees and/or representatives of the City, and within the scope of their employment as such.

12. Defendant Icahn School of Medicine at Mount Sinai is an educational corporation chartered by the New York State Board of Regents. It is located in New York, New York.

13. Defendant Mount Sinai Health System Inc. is a not for profit corporation organized under the laws of New York. It has its principal place of business in New York, New York.

14. Defendant The Mount Sinai Medical Center, Inc. is a not for profit corporation organized under the laws of New York. It has its principal place of business in New York, New York.

15. Defendant The Mount Sinai Hospital is a not for profit corporation organized under the laws of New York. It has its principal place of business in New York, New York.

16. Defendant Mount Sinai Faculty Practice Associates is a multi-specialty group practice of healthcare professionals. It has offices in New York, New York.

17. Hereafter, defendants Icahn School of Medicine at Mount Sinai, Mount Sinai Health System Inc., The Mount Sinai Medical Center, Inc., The Mount Sinai Hospital, and Mount Sinai Faculty Practice Associates will be referred to, collectively, as the “Mount Sinai

Defendants”.

18. At all times relevant herein, the Mount Sinai Defendants owned, operated, controlled, and managed a hospital and affiliated medical facilities pursuant to the laws of the State of New York for the care of the sick located in the County, City and State of New York which provided personnel, including doctors, psychiatrists, psychologists, nurses, attendants and others for the care and treatment of its patients and which held itself out to the public as furnishing treatment facilities where patients, including the Plaintiff could be treated for various ailments.

19. At all times relevant herein, the Mount Sinai Defendants operated, staffed and/or otherwise controlled the World Trade Center Health Program Clinical Center of Excellence at Mount Sinai and its Mental Health Program (hereinafter the “WTC Mental Health Program”).

20. Defendant Sandra M. Lowe, M.D. (“Lowe”) is a physician duly licensed to practice medicine in the State of New York.

21. At all times relevant herein, Lowe was an agent, servant and/or employee of the Mount Sinai Defendants working in the WTC Mental Health Program.

22. At all times relevant herein, defendant Lowe was affiliated and has admitting privileges at the hospitals operated by the Mount Sinai Defendants.

23. At all times relevant herein, defendant Lowe was employed by the Mount Sinai Defendants as an assistant clinical professor of psychiatry.

24. Defendant Fatih Ozbay, M.D. (“Ozbay”) is a physician duly licensed to practice medicine in the State of New York.

25. At all times relevant herein, Ozbay was an agent, servant and/or employee of the Mount Sinai Defendants working in the WTC Mental Health Program.

26. At all times relevant herein, defendant Ozbay was affiliated and has admitting

privileges at the hospitals operated by the Mount Sinai Defendants.

27. At all times relevant herein, defendant Ozbay was employed by the Mount Sinai Defendants as an assistant professor of psychiatry.

28. At all times relevant herein, defendant Esther McBirney-Goc, Ph.D. (“McBirney-Goc”) was a natural person providing psychological services in New York, New York.

29. At all times relevant herein, McBirney-Goc was enrolled as a post-doctorate fellow in clinical psychology at the Icahn School of Medicine at Mount Sinai.

30. At all times relevant herein, McBirney-Goc was not licensed to practice medicine in the State of New York.

31. At all times relevant herein, McBirney-Goc was an agent, servant and/or employee of the Mount Sinai Defendants working in the WTC Mental Health Program.

Factual Allegations

32. At all times relevant hereto, the Mount Sinai Defendants operated the Mt. Sinai Irving J. Selikoff Centers for Occupational and Environmental Medicine (the “Selikoff Centers”).

33. The Selikoff Centers are one of seven Clinical Centers of Excellence within the New York/New Jersey area of the federally funded World Trade Center Health Program (“WTCHP”).

34. The WTCHP provides medical and mental health monitoring and treatment for WTC-related health conditions, as well as benefits counseling to 9/11 workers and volunteers who were involved in the rescue, recovery, demolition, and clean-up work after the attacks on September 11, 2001.

35. The Selikoff Centers provides treatment funded by the WTCHP at clinics known

as the WTC Health Program Clinical Center of Excellence at Mount Sinai.

36. As part of this program the Mount Sinai Defendants operate the WTC Mental Health Program.

37. The Mount Sinai Defendants operate the WTC Mental Health Program by utilizing the facilities, employees, agents, and servants of the Mount Sinai Defendants including defendants Lowe, Ozbay, and McBirney-Goc, to deliver mental health treatment to first-responders enrolled or seeking enrollment in the WTCHP.

38. At all times relevant hereto, Lowe, Ozbay, and McBirney-Goc were assigned duties by the Mount Sinai Defendants in connection with the WTC Mental Health Program.

39. At all times relevant hereto, all of the physicians, nurses and other medical personnel, including Lowe, Ozbay, and McBirney-Goc, involved in the medical diagnosis, care and treatment of Plaintiff at the WTC Mental Health Program were agents, servants and/or employees of the Mount Sinai Defendants.

40. Plaintiff is a 50-year-old man, military veteran, and retired NYPD officer.

41. Plaintiff retired on disability from the NYPD in 2008 as a result of post-traumatic stress disorder and related conditions stemming from his service as a responder to the 9/11 attacks on the World Trade Center.

42. Since 2008 and at all times relevant hereto, Plaintiff received continuous mental healthcare treatment, including from the Department of Veterans Affairs New York Harbor Healthcare System (“VA Hospital”) and the Mount Sinai Defendants’ WTC Mental Health Program.

43. Plaintiff is legally married to his wife who works as a clerk for the City of New York at One Police Plaza, New York, New York.

44. Plaintiff and his wife have a three-year-old daughter.

45. The family lives together at the family home located in Richmond County, New York.

46. As a result of his service as a first-responder in the aftermath of the 9/11 World Trade Center attacks, Plaintiff was eligible for treatment through WTCHP.

47. On June 30, 2015 at 10:15 a.m., Plaintiff had an appointment at the Mount Sinai Defendants' WTC Mental Health Program at 345 East 102nd Street, Room 215 in New York, New York.

48. This appointment was scheduled weeks in advance as a result of a solicitation by a representative of the WTCHP and/or the Mount Sinai Defendants, who encouraged Plaintiff to transfer his care to the WTC Mental Health Program.

49. The representative advised Plaintiff that although Plaintiff would receive his treatment at a WTC Mental Health Program clinic operated by the Mount Sinai Defendants in Staten Island, Plaintiff was required to first come to the programs location at 345 East 102nd Street, Room 215, in Manhattan for the administrative purpose of transferring his treatment from the VA Hospital to WTC Mental Health Program.

50. The representative further advised Plaintiff that this appointment would be brief.

51. At the time of the solicitation and June 30 appointment, Plaintiff had been receiving treatment through the VA Hospital.

52. On June 30, 2015, Plaintiff arrived on time at 10:15 a.m. for his scheduled appointment with his three-year-old daughter.

53. After a long wait, Defendant McBirney-Goc, an unlicensed post-doctorate fellow in psychology, came to meet Plaintiff in the waiting room.

54. Defendant McBirney-Goc advised Plaintiff that he would not be able to attend his appointment with his daughter present.

55. Plaintiff asked Defendant McBirney-Goc to reconsider, explaining to her that he had confirmed that he could bring his daughter to the appointment with the representative who had solicited his attendance, and that he routinely brings his daughter with him to medical appointments, but McBirney-Goc rejected Plaintiff's request and told Plaintiff he would need to reschedule.

56. Thereafter, Plaintiff attempted to contact another doctor at the clinic with the hope that McBirney-Goc's refusal to allow his appointment to go forward with his daughter present would be overridden.

57. The receptionist answering Plaintiff's call connected Plaintiff with McBirney-Goc instead.

58. McBirney-Goc told Plaintiff that she had spoken with her supervisor and that Plaintiff could return for his appointment.

59. Upon information and belief, McBirney-Goc's supervisor on June 30, 2015 was Defendant Lowe.

60. Plaintiff's appointment was conducted with his daughter present by defendants McBirney-Goc and Lowe in a conference room inside Room 215.

61. At no time did either defendant McBirney-Goc or Lowe identify themselves as doctors, indeed, Lowe did not identify herself at all.

62. During the course of this appointment, McBirney-Goc and/or Lowe asked Plaintiff whether he felt suicidal and homicidal, to which Plaintiff responded in the negative.

63. Plaintiff was neither suicidal or homicidal on June 30, 2015.

64. Plaintiff explained to McBirney-Goc and Lowe that, since 2008, he had received continuous treatment for his mental health condition, including an appointment just the previous day, June 29, at the VA Hospital.

65. Rather, McBirney-Goc and Lowe stated that they believed that Plaintiff should be hospitalized.

66. Plaintiff provided McBirney-Goc and Lowe with names of several of his doctors, which he encouraged that they contact to discuss Plaintiff's history, current mental health status and treatment program.

67. McBirney-Goc and Lowe refused Plaintiff's reasonable suggestion that they contact his treating physicians for additional background and information on his history and treatment.

68. Plaintiff asked, and McBirney-Goc and Lowe confirmed that Plaintiff he was free to leave.

69. Having received confirmation from McBirney-Goc and Lowe that he was free to leave, Plaintiff told McBirney-Goc and Lowe to destroy his HIPPA release forms and advised them of his intention to return to the VA Hospital to continue his treatment.

70. Thereafter, Plaintiff left the conference room in Room 215, and walked with his daughter through the long corridor to an elevator, and once out of the elevator, they walked past the security guard station in the lobby of the building and left.

71. At no time did McBirney-Goc, Lowe, the security officer or any other personnel of the Mount Sinai Defendants attempt to restrain Plaintiff from leaving or indicate that Plaintiff was not free to leave.

72. Upon information and belief, the WTC Mental Health Program is not properly

trained nor equipped with the correct personnel and/or procedures for hospitalizing patients under their care.

73. Thereafter, Plaintiff and his daughter went to a local park, located near the 23rd precinct of the NYPD, where Plaintiff's daughter played for awhile.

74. At approximately 12:00 p.m., defendants McBirney-Goc and Lowe called 911 and falsely reported to police that Plaintiff was suicidal and presented an imminent danger to himself and to his three-year-old daughter.

75. In connection with this report, defendants McBirney-Goc and Lowe revealed Plaintiff's personal and confidential health information learned in the course of treatment including his diagnosis of PTSD and mental health history to NYPD personnel.

76. NYPD personnel assigned to the 23rd Precinct, including patrol supervisors Sergeant Santos and Ruiz, Police Officers Waitkevich, Ortiz and Wang, and Detectives Grasso, Jennings, and McMann responded to 345 East 102 Street, Room 215.

77. Upon information and belief, defendants Ozbay, McBirney-Goc and Lowe disclosed Plaintiff's personal and confidential mental health information including history and diagnosis to the responding officers.

78. Upon information and belief, Ozbay, McBirney-Goc and Lowe did not have a good faith belief that Plaintiff was suicidal and homicidal.

79. Ozbay, McBirney-Goc and Lowe were not authorized or justified in disclosing information learned from their treatment of Plaintiff to the responding officers.

80. Defendant Duty Captain Baker of the 23rd Precinct also responded to the location and contacted the detective division to initiate the transmittal of an Amber Alert under the direction of defendant Detective Bureau Duty Captain Flannigan.

81. McBirney-Goc, Lowe, as well as other personnel employed by the Mount Sinai Defendants conspired, commenced and/or assisted Defendants Duty Captain Baker and Detective Bureau Duty Captain Flannigan, and other NYPD personnel in the commencement of the issuance of a false Amber Alert on June 30, 2015 at 2:40 p.m. indicating that Plaintiff had abducted an unknown three-year-old child from a mental health clinic and that the child was in imminent danger of serious bodily injury or death.

82. The Amber Alert statement read in its entirety:

The NYPD has activated the New York State AMBER Alert and is investigating a child abduction that occurred on 345 East 102nd Street, in New York, NY at about 12:00 PM on 6/30/2015. The child is described as a White female approximately 3 years old and is possibly related to the suspect. The SUSPECT, Patrick Giblin, is a White male, approximately 50 years old with short, brown hair and green eyes. He is approximately 6 feet tall and weighs about 230 pounds. The suspect was last seen wearing a green shirt and blue jeans and a camouflage cap. The VEHICLE has been identified as a black SUV Dodge Durango with New York license plate number GDE4791. The SUSPECT was last seen traveling East on the Brooklyn Bridge. The suspect left a mental health clinic with an unknown white female child approximately 3 years of age and is believed to have down syndrome. The suspect is suicidal and suffers from P.T.S.D. Anyone with any information on this abduction is asked to call the NYPD 23rd Precinct at (866)N Y S-AMBER or dial 911 to provide information on a report or sighting. For more information, visit: <http://www.amber.ny.gov> (<http://www.amber.ny.gov/>).

83. Defendants Duty Captain Baker, Detective Bureau Duty Captain Flannigan, and John Does 1-10 (the “NYPD Defendants”) ordered, facilitated, or otherwise caused the issuance of this false Amber Alert.

84. The Amber Alert and related information were disseminated to millions of people through cooperating state and federal agencies, and news and media outlets without proper evaluation or investigation into the situation, and despite the obvious lack of evidence to support the allegations that Plaintiff had abducted an unknown child or that this child was in danger of serious bodily injury or death.

85. The NYPD Defendants released published written statements in the form of the Amber Alert and related information to the public that falsely accused Plaintiff of abducting a child, which constitutes the serious crimes of kidnapping and unlawful imprisonment pursuant to Article 135 of the New York Penal Law.

86. The NYPD Defendants falsely accused Plaintiff of child abduction despite knowing that no abduction had occurred and that Plaintiff was with his own daughter of whom he has full legal custody.

87. The NYPD Defendants published written statements in the form of the Amber Alert and related information to the public that revealed Plaintiff's personal health information related to his medical diagnosis of PTSD, history of mental illness, and that he had been at a mental health clinic.

88. The NYPD Defendants acted in a grossly irresponsible manner without due consideration for the standards of investigation, information gathering and dissemination ordinarily followed by responsible parties.

89. This false Amber Alert commenced a public, citywide manhunt for Plaintiff and the child he allegedly abducted.

90. The NYPD Defendants made further false statements that Plaintiff was armed, homicidal and suicidal, in knowing, reckless, and/or negligent violation of Plaintiff's privacy rights, and in a grossly irresponsible manner without due consideration for the standards of investigation, information gathering and dissemination ordinarily followed by responsible parties.

91. Without explaining to her what was going on, John Does, being NYPD personnel whose identities are currently unknown to Plaintiff, detained Plaintiff's wife at One Police Plaza.

92. Without due process of law, John Does confiscated Plaintiff's wife's cell phone and surreptitiously communicated with Plaintiff pretending to be his wife.

93. This outrageous and harassing conduct further violated Plaintiff's privacy rights.

94. At the time Plaintiff learned of the Amber Alert, Plaintiff was en route to the VA Hospital in Brooklyn.

95. When Plaintiff arrived at the VA Hospital, there was an army of law enforcement officers from various agencies and an NYPD detective from hostage negotiation who confronted Plaintiff at gunpoint.

96. After arriving at the VA Hospital, Plaintiff was evaluated and cleared of any alleged threat posed to himself or his daughter, and subsequently released.

97. Although the Amber Alert was eventually cancelled and Plaintiff was cleared of posing any harm, the NYPD Defendants took no steps to recant their false statements or otherwise clear Plaintiff's name of the false accusations they made against him.

98. Instead, the NYPD Defendants made statements to the news and media outlets that Plaintiff and the child were safe and in law enforcement custody, perpetuating the false public belief they had created that Plaintiff posed a real threat to the child and was subject to a valid Amber Alert.

99. These statements were false as Plaintiff was not in police custody but instead was under the care of his physicians at the VA Hospital who verified that Plaintiff presented no imminent threat to himself or others.

100. Despite physicians at the VA Hospital's independent evaluation that Plaintiff did not present an imminent threat to himself or others, Defendants Lowe and Ozbay attempted to pressure medical personnel at the VA Hospital to hospitalize Plaintiff.

101. In an effort to cover up their negligent and wrongful conduct, Lowe and Ozbay attempted to pressure personnel at the VA Hospital to involuntarily hospitalize Plaintiff, notwithstanding the VA Hospital's objective evaluation that hospitalizing Plaintiff was inappropriate as Plaintiff did not present an imminent threat to himself or others.

102. Ozbay threatened at least one doctor at the VA Hospital that she must involuntarily hospitalize Plaintiff even though he had not personally evaluated or observed Plaintiff.

103. Although the Amber Alert was cancelled soon after being issued, due to the negligence of the City and the NYPD Defendants, the Amber Alert continued to be sent to the public for several days following the incident.

104. Cell phone users with local numbers continued to receive the Amber Alert, even in foreign countries, for days after the alert was issued and cancelled on June 30, 2015.

105. The NYPD Defendants knew, or should have known that the Lowe, Ozbay, and McBirney-Goc's reports and the subsequent Amber Alert were false and the manhunt improper.

106. The NYPD Defendants knew, or should have known that the serious allegations against Plaintiff were unsupported and the result of gross irresponsibility, recklessness, negligence and speculation.

107. The NYPD Defendants failed to perform an unbiased, objective, proper and adequate investigation and/or inquiry into Lowe, Ozbay, and McBirney-Goc's grossly irresponsible and false report.

108. Such an investigation would have revealed McBirney-Goc's personal animosity toward Plaintiff, which was readily on display and called into question the veracity of her unlicensed assessment of Plaintiff.

109. As a result of Defendants' intentional, reckless, grossly irresponsible and/or

negligent acts, the NYPD Emergency Service Unit teams and a hostage negotiation team were deployed to the VA Hospital and Plaintiff's residence, and the 122nd Precinct was notified.

110. Later on June 30, 2015, after Plaintiff's treating physicians at the VA Hospital determined that Plaintiff did not present an imminent threat to himself or others, McBirney-Goc, in consultation with defendants Lowe, Ozbay and non-party Ms. Marrone, made a false report to the NYC Administration for Children's Services ("ACS") that Plaintiff was a threat to the safety of his daughter.

111. The false statements intentionally, recklessly and/or negligently communicated and published to ACS subjected Plaintiff, his wife and daughter to an investigation by ACS and threats to Plaintiff and his family's well-being.

112. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

113. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

114. This action falls within exceptions to Article 16 of the C.P.L.R.

AS AND FOR FIRST CAUSE OF ACTION
(Medical Malpractice and Negligence)
(As and Against the Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc)

115. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 114 inclusive, with the same force and effect as if hereinafter set forth at length.

116. On or about June 30, 2015, Plaintiff sought the professional care of defendants

Lowe, Ozbay, McBirney-Goc and the Mount Sinai Defendants at the WTC Mental Health Program, for certain mental health conditions, for which these defendants, their agents, servants and employees rendered mental health care, diagnosis, treatment and services to him.

117. Lowe, Ozbay, McBirney-Goc and the Mount Sinai Defendants owed a duty of care to Plaintiff and had a duty not cause him injury.

118. Lowe, Ozbay, McBirney-Goc and the Mount Sinai Defendants rendered mental health care, diagnosis, treatment and services carelessly, unskillfully, negligently, recklessly, and not in accordance with accepted standards of medical care, diagnosis, treatment and services in the community.

119. Lowe, Ozbay, McBirney-Goc and the Mount Sinai Defendants deviated from the accepted standard of care by *inter alia*:

- a. Failing to perform an unbiased, objective, proper and adequate examination, evaluation and/or inquiry into Plaintiff's mental health on June 30, 2015;
- b. Diagnosing Plaintiff as presenting an imminent threat of harm to himself and others despite Plaintiff's statements to the contrary and his reasonable suggestions that they contact his treating physicians at the VA Hospital;
- c. Diagnosing Plaintiff as suicidal and homicidal despite Plaintiff's statements to the contrary and his reasonable suggestions that they contact his treating physicians at the VA Hospital;
- d. Failing to maintain procedures and facilities for dealing with hospitalizing patients and the foreseeable risks inherent in dealing with patients suffering from PTSD and the mental health conditions to which the WTC Mental Health Program caters;

- e. Recommending that Plaintiff be hospitalized without heeding Plaintiff's reasonable suggestions that they contact his treating physicians at the VA Hospital;
- f. Disclosing Plaintiff's confidential health information in violation of duty of confidentiality to Plaintiff as well as state and federal law;
- g. Conspiring, commencing and/or assisting the NYPD Defendants in the commencement of the issuance of the false Amber Alert; and
- h. Attempting to pressure medical personnel at the VA Hospital to involuntarily hospitalize Plaintiff, despite the VA Hospital physicians' independent evaluation that hospitalization was not appropriate and that Plaintiff did not present an imminent threat to himself or others.

120. Defendants Lowe and Ozbay further deviated from the acceptable standard of care during the care and treatment of the Plaintiff on or about June 30, 2015 and thereafter by failing to properly supervise the care and treatment that was being provided by Defendant McBirney-Goc to Plaintiff.

121. As a proximate result of Lowe, Ozbay, McBirney-Goc and the Mount Sinai Defendants' breach of their duty of care, the false Amber Alert was issued and Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

122. Said occurrences were due to the carelessness and negligence of the Lowe, Ozbay, McBirney-Goc, the Mount Sinai Defendants, their agents, servants and/or employees in failing to diagnose, treat and care for Plaintiff in a good, accepted and proper medical manner, and without

any fault or lack of care on the part of the Plaintiff.

AS AND FOR SECOND CAUSE OF ACTION
(Breach of Duty of Confidentiality)
(as and against Mount Sinai Defendants, Lowe, and McBirney-Goc)

123. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 122 inclusive, with the same force and effect as if hereinafter set forth at length.

124. Plaintiff was a patient under the mental health care and treatment of the Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc their agents, servants and/or employees.

125. This relationship gave rise to a duty on the part of the Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc not to disclose Plaintiff's personal information learned during the course of treatment.

126. The Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc breached their fiduciary duty to Plaintiff by disclosing Plaintiff's mental health information to third-parties including the NYPD Defendants and the ACS.

127. This disclosure was made without authorization.

128. This disclosure was made without justification.

129. As a direct and proximate result of this breach of duty, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

130. The foregoing demonstrates the callous, reckless, or grossly negligent disregard of Plaintiff's safety, well-being, right to the privacy and confidentiality of sensitive medical information and supports an award of punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligent Hiring, Retention, and Supervision)
As and Against the Mount Sinai Defendants

131. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 130 inclusive, with the same force and effect as if hereinafter set forth at length.

132. The Mount Sinai Defendants were negligent in hiring, retaining and supervising personnel in the WTC Mental Health Clinic who were careless, unskillful, negligent, reckless, and who did not possess the requisite knowledge, skill, and comportment of medical and/or psychiatric, as the case may be, professionals in the community.

133. During the times alleged herein when Plaintiff was receiving medical and psychiatric care and treatment from defendants Lowe, Ozbay, and McBirney-Goc, these defendants were employed by the Mount Sinai Defendants and they were acting within the scope of that employment.

134. The Mount Sinai Defendants were negligent in hiring and supervising not only the named defendants herein, but all those involved in Plaintiff's care and the events and circumstances alleged herein.

135. The Mount Sinai Defendants are responsible for the breach of applicable medical and psychiatric care occasioned by their employees, including but not limited to the defendants herein, which resulted in the injuries to Plaintiff.

136. The Mount Sinai Defendants prior to the granting or renewing of privileges or employment of the defendants, doctors, psychologists, nurses, social workers, security personnel, students and others involved in the care of Plaintiff failed to investigate the qualifications, competence, capacity, abilities, capabilities, and comportment of said personnel, including but not

limited to obtaining the following information: patient grievances, negative health care outcomes, incidents, injuries to patients, professional malpractice actions commenced against said persons, including the outcome thereof, any history of association, privilege and/or practice at other institutions, any discontinuation of said association, employment privilege and/or practice at said institution, and any pending professional misconduct proceeding in this State or another State, the substance of the allegations in such proceedings and any additional information concerning such proceedings and defendant hospital failed to make sufficient inquiry of the physician, nurse and/or employees and institutions which should and did have information relevant to the capacity capability, ability, competence, and comportment of said persons rendering treatment.

137. Had the Mount Sinai Defendants made the above stated inquiry or in the alternative had the Mount Sinai Defendants reviewed and analyzed the information obtained in a proper manner, privileges, admissions as a student and/or employment would not have been granted and/or renewed.

138. By reason of Mount Sinai Defendants' failure to meet the aforementioned obligation, Plaintiff was treated by personnel who were lacking the requisite skills, abilities, competences, capacity, and comportment, and as a result the Plaintiff was caused to sustain the damages alleged herein to his reputation, safety, and was caused to suffer severe emotional and psychological pain and mental anguish as a result thereof.

139. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

AS AND FOR A FOURTH CAUSE OF ACTION
(Negligent Preservation of Confidential Health Information)

(Mount Sinai Defendants)

140. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 139 inclusive, with the same force and effect as if hereinafter set forth at length.

141. The Mount Sinai Defendants had a duty to maintain the privacy and confidentiality of their patients' sensitive health information.

142. The Mount Sinai Defendants violated this duty by failing to enact adequate safeguards, procedures, and training to prevent the improper disclosure of sensitive health information without privilege or authorization.

143. As a result of the Mount Sinai Defendants' failure, their employees violated Plaintiff's right to privacy by publishing his sensitive health information to the NYPD Defendants without authorization or justification and as a result thereof to millions of people.

144. As a result of the Mount Sinai Defendants' failure, their employees violated Plaintiff's right to privacy by publishing his sensitive health information to ACS and physicians at the VA Hospital.

145. The circumstances surrounding the disclosure of Plaintiff's sensitive health information were foreseeable and adequate safeguards could have prevented this injury.

146. Multiple employees of the Mount Sinai Defendants were involved in the disclosure but failed to recognize that their disclosure was unauthorized and violated Plaintiff's common law right to privacy, constitutional right to privacy, and the privacy rules and laws the Mount Sinai Defendants are subject to.

147. Plaintiff's sensitive health information was improperly disseminated by employees of the Mount Sinai Defendants on at least four different occasions: the initial call to authorities,

subsequent discussions with the NYPD, discussion with the VA Hospital without authorization, and McBirney-Goc's report to ACS.

148. Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

149. The foregoing demonstrates the callous, reckless, or grossly negligent disregard of Plaintiff's right to the privacy and confidentiality of sensitive medical information and supports an award of punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION
(DEFAMATION)
(As and Against the Mount Sinai Defendants, Lowe, Ozbay and McBirney-Goc)

150. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 149 inclusive, with the same force and effect as if hereinafter set forth at length.

151. On June 30, 2015 at approximately 12:00 p.m., defendants McBirney-Goc and Lowe, within the scope of their employment by the Mount Sinai Defendants called police and uttered false statements to police *inter alia* that Plaintiff was suicidal, homicidal and presented an imminent threat to himself and his three-year-old daughter.

152. Lowe, Ozbay, and McBirney-Goc conspired, commenced and/or assisted the NYPD Defendants in the issuance of a false Amber Alert that stated that Plaintiff had committed the crime of abducting an unknown three-year-old child from a mental health clinic to whom he presented a danger of serious bodily harm or death.

153. Defendants Lowe, Ozbay, and McBirney-Goc expanded upon and confirmed these

false statements to responding NYPD officers.

154. Defendants Lowe, Ozbay, and McBirney-Goc made these false statements without privilege or authorization.

155. Defendants Lowe, Ozbay, and McBirney-Goc made these false statements intentionally, recklessly, irresponsibly and/or negligently.

156. These statements spoke to Plaintiff's mental health condition.

157. These statements accused Plaintiff of serious crimes.

158. The publication of these statements is defamation per se.

159. As a proximate result of these published false statements, the NYPD Defendants commenced an Amber Alert further disseminating these false statements.

160. This false Amber Alert was disseminated to millions of people through cooperating state and federal agencies, and news and media outlets without proper evaluation or investigation into the situation, and despite the obvious lack of evidence to support the claims made by Lowe, Ozbay, and McBirney-Goc.

161. This false Amber Alert publically humiliated Plaintiff and commenced a public, citywide manhunt for Plaintiff.

162. In doing so, Lowe, Ozbay, and McBirney-Goc acted in a grossly irresponsible manner without due consideration for the standards of information gathering and dissemination followed by a reasonably competent and skilled health care professional, with a similar background and in the same medical community, would have provided under the circumstances.

163. As a result of these false statements, the false Amber Alert was issued and a citywide manhunt for Plaintiff was initiated.

164. As a direct and proximate result, Plaintiff was publicly humiliated and suffered

damages to his reputation.

165. As a direct and proximate result, Plaintiff was caused to suffer threats and harassment from members of the public.

166. As a direct and proximate result, Plaintiff was wrongfully detained by police.

167. As a direct and proximate result, Plaintiff's wife was wrongfully detained by police.

168. Lowe, Ozbay, and McBirney-Goc published further false statements to ACS, subjecting Plaintiff to an investigation by ACS officials.

169. As a direct and proximate result, Plaintiff was investigated by, harassed, and his privacy was invaded by the agents, servants, or employees as the case may be, of the ACS.

170. As a direct and proximate result, Plaintiff was caused problems with his daughter's school and she was unable to continue in her specialized education program.

171. Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

172. The foregoing demonstrates the callous, reckless, or grossly negligent disregard of Plaintiff's right to the privacy and confidentiality of sensitive medical information and supports an award of punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION

(Gross Negligence)

As and Against Lowe, Ozbay, McBirney-GOC and the Mount Sinai Defendants

173. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 172 inclusive, with the same force and effect as if hereinafter set forth at length.

174. The Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc had a duty to act with reasonable care toward Plaintiff.

175. The acts and omissions of the Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc constitute conduct evincing a reckless disregard for the rights of Plaintiff.

176. The egregious conduct of the Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc evinces a reckless disregard for the rights and well-being of Plaintiff. This conducted included: (a) failing to maintain, adhere to, or enforce adequate policies and procedures to prevent the disclosure of protected health information to third-parties; (b) failing to maintain procedures and facilities for dealing with hospitalization of patients and the foreseeable risks inherent in dealing with patients suffering from PTSD and the mental health conditions to which the WTC Mental Health Program caters; (c) failing to review Plaintiff's medical records or contact his treating physicians at the VA Hospital prior to making false statements to the NYPD Defendants; (d) disclosing Plaintiff's mental health information; (e) accusing Plaintiff of abducting his daughter; (f) attempting to pressure the VA Hospital to involuntarily commit Plaintiff to cover their own mistakes; and (g) making false statements to ACS after it was determined that Plaintiff posed no risk to himself or others.

177. The gross negligence and grossly negligent acts of the Mount Sinai Defendants, Lowe, Ozbay, and McBirney-Goc, while acting in the course and scope of their respective employments by the Mount Sinai Defendants, were the proximate cause of Plaintiff's injuries.

178. The Mount Sinai Defendants are liable for the acts of Lowe, Ozbay, and McBirney-Goc under the doctrine of respondeat superior.

179. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt,

harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

180. The foregoing demonstrates the callous, reckless, or grossly negligent disregard of Plaintiff's safety, well-being, right to the privacy and confidentiality of sensitive medical information and supports an award of punitive damages.

AS FOR A SEVENTH CAUSE OF ACTION
(Defamation)
As and Against the NYPD Defendants

181. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 180 inclusive, with the same force and effect as if hereinafter set forth at length.

182. Beginning on June 30, 2015, the NYPD Defendants published false statements to millions of people through the false Amber Alert and associated information disseminated that Plaintiff had abducted an unknown three-year-old child from a mental health clinic, was suicidal and that the child was in danger of serious bodily injury or death.

183. This false Amber Alert was disseminated to millions of people through cooperating state and federal agencies, and news and media outlets without proper evaluation or investigation into the situation, and despite the obvious lack of evidence to support the allegations that Plaintiff had abducted a child or that the child was in danger of serious bodily injury or death.

184. The NYPD defendants made these statements with a reckless disregard for the truth.

185. In doing so, the NYPD Defendants acted in a grossly irresponsible manner without due consideration for the standards of information gathering and dissemination ordinarily followed by responsible police officers.

186. This false Amber Alert commenced a public, citywide manhunt for Plaintiff and the

three-year-old child he allegedly abducted.

187. Although the false Amber Alert was eventually cancelled and Plaintiff was cleared of abducting a child and posing any threat to himself or others, the NYPD Defendants made no effort to recant the false accusations and serious crimes alleged and publicized against him.

188. Rather, the NYPD Defendants made the further false statement to news and media outlets that Plaintiff and the child were safe and in law enforcement custody, perpetuating the false public belief that Plaintiff had committed a crime and posed a real threat to the child.

189. The NYPD Defendants published false statements regarding Plaintiff's mental health condition, diagnosis, and history.

190. The alleged charges, crimes, and accusations made by the NYPD Defendants against Plaintiff and published to the media were unsupported and the result of false evidence, gross irresponsibility, negligence and reckless speculation.

191. The NYPD Defendants were reckless in failing to perform an unbiased, objective, proper and adequate investigation and/or inquiry into Lowe, Ozbay, and McBirney-Goc's accusations prior to issuing the false Amber Alert.

192. These false statements were published without authorization or justification.

193. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

194. The publication of these false statements imputed that Plaintiff had committed a serious crime, and thus the publication of these false statements constitute defamation per se.

195. The publication of these false statements imputed that Plaintiff suffered from a

loathsome disease, and thus publication of these statements constitutes defamation per se.

AS FOR AN EIGHTH CAUSE OF ACTION
(Negligence)
As and Against the City and NYPD Defendants

196. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 195 inclusive, with the same force and effect as if hereinafter set forth at length.

197. The City and NYPD Defendants had a duty to act with reasonable care toward Plaintiff.

198. The NYPD Defendants, while acting in the course and scope of their employment by City, were negligent in failing to perform an adequate investigation of the veracity of the claims and allegations of Lowe, Ozbay, and McBirney-Goc.

199. The NYPD Defendants, while acting in the course and scope of their employment by City, were negligent in failing to follow departmental procedures, rules and regulations, and provisions of state law related to the issuance of an Amber Alert and by issuing an Amber Alert knowing that no abduction had occurred.

200. The NYPD Defendants, while acting in the course and scope of their employment by City, were negligent in disseminating further statements that Plaintiff was in police custody even though he had in fact been released from the VA Hospital.

201. The City and the NYPD Defendants, while acting in the course and scope of their employment by City, were negligent in failing to implement, enforce, or maintain adequate safeguards with respect to use of the Amber Alert system.

202. The City and the NYPD Defendants, while acting in the course and scope of their employment by City, were negligent in failing to maintain proper information systems and press

policies to prevent the dissemination of false and defamatory statements and private health information whether not authorized or justified.

203. The NYPD Defendants, while acting in the course and scope of their employment by City, were negligent in failing to prevent the false Amber Alert from continuing to be disseminated for days after it was cancelled although Plaintiff and his daughter were found to be safe and that Plaintiff did not present a risk to himself or others.

204. The negligence and negligent acts of the NYPD Defendants, while acting in the course and scope of their employment by City, were the proximate cause of Plaintiff's injuries.

205. The City is liable for the acts of the NYPD Defendants under the doctrine of respondeat superior.

206. The negligence and negligent acts of the City and NYPD Defendants caused Plaintiff to sustain suffering and injury, extreme emotional pain, suffering and distress, and to otherwise sustain physical and emotional damages.

207. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

AS AND FOR AN NINTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision)
As and Against the City

208. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 207 inclusive, with the same force and effect as if hereinafter set forth at length.

209. At all times hereinafter mentioned and at the time of the occurrences herein and

prior thereto, the City owed a duty of care to Plaintiff to use reasonable care in the hiring, training, supervision and retention of their employees including those responsible for investigating abductions, activating the Amber Alert system, and issuing statements concerning accusations of serious crimes and revelation of personal health information to the media, including the NYPD Defendants, to ensure that they properly performed their duties without unnecessarily endangering, embarrassing, defaming, or causing damage to victims such as Plaintiff.

210. The City was negligent in hiring, training, retaining and supervising their employees, including the NYPD Defendants, whom they knew, or in the exercise of due care, should have known, were unfit to perform their duties, to exercise proper comportment and judgment to carry out their duties, to follow and carry out decision making skills, police protocols, procedures, and/or tactics, and responsibly coordinate the foregoing.

211. The City was negligent in failing to have, use, and enforce proper protocols and procedures to uncover, investigate, discharge, suspend or otherwise discipline employees including the NYPD Defendants.

212. The City knew that their employees would confront situations and issues in their work, and that, without proper supervision, training, comportment, judgment, and decision making skills, would fail to employ proper tactics, procedures, and protocols, and would make wrong, incorrect, and potentially deadly decisions regarding allegations of serious crimes such as child abduction, activation of the Amber Alert system, and release of private health information.

213. The acts and conduct of the NYPD Defendants, while acting in the course and scope of their employment by City, were the direct and proximate cause of the injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

AS AND FOR AN TENTH CAUSE OF ACTION
(Gross Negligence)
As and Against the City and NYPD Defendants

214. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 213 inclusive, with the same force and effect as if hereinafter set forth at length.

215. The City and NYPD Defendants had a duty to act with reasonable care toward Plaintiff.

216. The acts and omissions of the City and NYPD Defendants constitute conduct evincing a reckless disregard for the rights of Plaintiff.

217. The egregious conduct of the City and NYPD Defendants evinces a reckless disregard for the rights and well-being of Plaintiff. This conduct included: (a) activating the Amber Alert system where it was clear that no abduction had occurred; (b) branding Plaintiff a child abductor; (c) broadcasting these false statements and Plaintiff's personal medical information to millions of people; (d) dispatching heavily armed Emergency Service Unit teams to the VA Hospital and Plaintiff's home; (e) publishing false and defamatory statements regarding the alleged abduction and Plaintiff's mental health history and personal medical information after Plaintiff and his daughter were located, evaluated and determined to pose no imminent danger; (f) failing to prevent the false Amber Alert from continuing to be disseminated for days after it was cancelled although Plaintiff and his daughter were found to be safe and that Plaintiff did not present a risk to himself or others; (g) disseminating further statements that Plaintiff was in police custody even though he was not in the custody of police and in fact had been released from the VA Hospital; (h) failing to implement, enforce, or maintain adequate safeguards with respect to use of the Amber Alert system; (i) failing to maintain proper information systems and press policies to prevent the

dissemination of false and defamatory statements and private health information whether not authorized or justified; and (j) failing to use reasonable care in the hiring, training, supervision and retention of their employees.

218. The gross negligence and grossly negligent acts of the City and NYPD Defendants, while acting in the course and scope of their respective employments by the City were the proximate cause of Plaintiff's injuries.

219. City is liable for the acts of the NYPD Defendants under the doctrine of respondeat superior.

220. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

221. The foregoing demonstrates the callous, reckless, or grossly negligent disregard of Plaintiff's safety, well-being, right to the privacy and confidentiality of sensitive medical information and supports an award of punitive damages.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Reckless Infliction of Emotional Distress)
As and Against All Defendants

222. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 221 inclusive, with the same force and effect as if hereinafter set forth at length.

223. By engaging in the conduct hereinabove described, the Defendants recklessly caused Plaintiff to sustain severe emotional distress.

224. Defendants acted willfully, wantonly, recklessly, carelessly and/or maliciously, with

utter disregard for the health, safety, and well-being of Plaintiff.

225. The Defendants acted in a shocking and outrageous manner exceeding all bounds of decency by, recklessly and/or intentionally, engaging in the conduct described above, which actions and inactions caused Plaintiff's severe emotional distress.

226. The Mount Sinai Defendants proximately caused and permitted Lowe, McBirney-Goc, and Ozbay, while acting in the scope of their employment, to be placed in a position where they recklessly or negligently caused Plaintiff's emotional damages.

227. The City proximately caused and permitted the NYPD Defendants, while acting in the scope of their employment, to be placed in a position where they recklessly caused Plaintiff's emotional damages.

228. By engaging in the conduct hereinabove described, Defendants recklessly, and with the intention to cause, or reckless disregard for the possibility of causing, did in fact cause Plaintiff severe and continuing emotional distress and acted in a shocking and outrageous manner exceeding all bounds of decency.

229. Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

230. Defendants' conduct proximately caused Plaintiff's damages which are continuous and ongoing.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Violation of Constitutional Right to Privacy)
As and Against the NYPD Defendants

231. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

those paragraphs of the complaint marked and designated 1 through 230 inclusive, with the same force and effect as if hereinafter set forth at length.

232. The constitutions of the United States and State of New York provide a right to privacy in personal health information.

233. By engaging in the conduct hereinabove described the NYPD Defendants violated this right by publishing Plaintiff's mental health history and diagnosis to millions of people.

234. The NYPD Defendants undertook these violative actions in the course of performing their official duties and under color of law.

235. By reason of the foregoing, Plaintiff sustained severe and serious personal injuries, irreparable damage to his reputation, was subjected to public humiliation, a citywide manhunt, harassment, intimidation and death threats, and was caused to suffer severe emotional and psychological pain and mental anguish.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Municipal Liability)
As and Against the City

236. Plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated 1 through 235 inclusive, with the same force and effect as if hereinafter set forth at length.

237. The aforementioned constitutional violations were a result of a custom policy, or practice of City.

238. Policy making officials of the City knew or should have known that their officers, detectives, and supervisors would face difficult choices as to how to proceed when presented with protected mental health information and allegations of serious crimes from medical professionals.

239. The consequence of making wrong choices is likely to lead to violation of citizens

constitutionally protected right to privacy where no emergency or justification for disclosure exists.

240. Proper training, policies, and procedures as well as the enforcement of these policies and procedures can prevent the improper disclosure of protected personal health information to the public in violation of citizens rights.

241. The violations of Plaintiff's right to privacy by the NYPD Defendants and resulting damages, is a direct and proximate result of this failure to train, supervise, and enforce the City's rules and regulations, and the City's unconstitutional custom, policies, and practice.

WHEREFORE, Plaintiff demands judgment jointly and severally against all of the Defendants as follows:

- a. An award of compensatory damages in amounts that are fair, just, and reasonable, against the Defendants, in a sum which exceeds the jurisdictional limits of all lower Courts, which may otherwise have jurisdiction over this claim;
- b. An award of damages against the Defendants to the extent that their liability is based upon actions that were reckless, willful, wanton, and maliciously undertaken in their individual capacities, in an amount which is fair, just, and reasonably designed to punish and deter said conduct;
- c. An award of attorney's fees and costs of this action; and
- d. Such other and further relief as the Court deems just and proper.

Dated: New York, New York
June 29, 2016

LASASSO LAW GROUP PLLC

By: /S/ Mariel LaSasso
Mariel LaSasso
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Attorneys for the Plaintiff

ATTORNEY VERIFICATION

Mariel LaSasso, an attorney admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury.

I am a member of LaSasso Law Group PLLC, attorneys for Plaintiff. I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; that the same is true to the knowledge of affirmant except as to the matters therein stated to be alleged upon information and belief, and that as to those matters affirmant believes them to be true. The basis of that belief is information contained in affirmant's files and communication with Plaintiff.

That the reason why this affirmation is being made by affirmant and not by Plaintiff, is that said Plaintiff is not in the county where affirmant's firm maintains its offices.

Dated: New York, New York
June 29, 2016

/S/ Mariel LaSasso

Mariel LaSasso